

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2026PRDE064710: IN THE MATTER OF SHELLEY ANN MORAN
06/25/2026 in Department J6
Hearing on Petition For Probate Of Will And For Letters Of Administration With Will
Annexed**

Sheri Moran seeks to probate the decedent's will and Lori Matson is seeking Letters of Administration.

There is a will and it appears to be valid.

Lori has failed to file a Notice of Petition to Administer Estate (DE-121), has failed to file proof of publication and is seeking appointment of administrator when there is a will.

Neither petitioner is listed as a named executor.

Petitioners have equal priory of appointment. (Probate Code §8461)

Persons ineligible for appointment are the following:

Probate Code §8402.

(a) Notwithstanding any other provision of this chapter, a person is not competent to act as personal representative in any of the following circumstances:

- (1) The person is under the age of majority.
- (2) The person is subject to a conservatorship of the estate or is otherwise incapable of executing, or is otherwise unfit to execute, the duties of the office.
- (3) There are grounds for removal of the person from office under Section 8502.
- (4) The person is not a resident of the United States.
- (5) The person is a surviving business partner of the decedent and an interested person objects to the appointment.

(b) Paragraphs (4) and (5) of subdivision (a) do not apply to a person named as executor or successor executor in the decedent's will.

The grounds for removal are:

Probate Code §8502

A personal representative may be removed from office for any of the following causes:

- (a) The personal representative has wasted, embezzled, mismanaged, or committed a fraud on the estate, or is about to do so.

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- (b) The personal representative is incapable of properly executing the duties of the office or is otherwise not qualified for appointment as personal representative.
- (c) The personal representative has wrongfully neglected the estate, or has long neglected to perform any act as personal representative.
- (d) Removal is otherwise necessary for protection of the estate or interested persons.
- (e) Any other cause provided by statute.

It appears that Sheri Moran should be appointed administrator with will annexed of the estate of Shelley Ann Moran with full IAEA authority and bond of \$467,000.00 unless the court determines a ground under Probate Code §8502.

The court intends to admit decedent's will dated 06/13/97 to probate.